Tentative Rulings and Resolution Review Hearings
June 22, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

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8:30 a.m. Law and Motion

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BARCLAYS BANK VS. WEBB
CASE NUMBER: CVG19-0000047
Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Per CCP § 664.6: Plaintiff Barclays Bank Delaware seeks to vacate the dismissal entered on March 11, 2020, and enforce the Stipulation Agreement filed on February 27, 2020. The motion was timely noticed. Defendant Deb Webb did not file an opposition.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing, or orally before the Court. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The parties stipulated to settlement in February 2020. The agreement provides that Defendant was to pay $665.00 to Plaintiff monthly. In the event of a default, Defendant is to pay $11,944.49, less payments received, plus costs. The Declaration of Attorney Richard Tang establishes that Defendant has paid $6,015.00 toward the agreed settlement amount and has failed to make a payment since August 16, 2021. The balance now due is $11,502.49 plus costs stipulated-to in the sum of $442.00, plus $80 for fees on this motion, less $6,015.00 paid, for a total judgment of $6,009.49. Plaintiff has presented sufficient evidence that Defendant is in default of the Stipulated Agreement.

The motion is **GRANTED**. The dismissal is set aside. Judgment will be entered in the amount of $6,009.49. Plaintiff provided a proposed Order and Judgment that will be executed by the Court.

GARCIA, ET AL. VS. FORD MOTOR COMPANY
CASE NUMBER: 25CV-0208919
Tentative Ruling on Motion for Sanctions: Plaintiffs Lizet Garcia and Jose Rojas Perez move for an order imposing monetary and evidentiary sanctions against Defendant Ford Motor Company for failure to comply with the initial disclosure and document exchange obligations imposed by Code of Civil Procedure section 871.26(b). Ford opposes the Motion.
This lemon law case arises from Plaintiffs' purchase of a 2022 Ford F-150, which Plaintiffs allege Ford failed to repair within a reasonable number of attempts. This case was filed on October 13, 2025 and is subject to the newly enacted procedural framework under Code of Civil Procedure sections 871.20 through 871.30. Based on the moving papers, it appears Plaintiff received Ford's Answer on November 17, 2025, establishing an initial disclosure deadline of January 16, 2026. Both parties agree that this is the operative deadline. The Court notes for the record that Ford's Answer was filed with the Court on May 19, 2026. It includes a proof of service dated November 17, 2025. Because both parties were operating on the assumption that this Answer had been filed in November 2025, the Court will proceed to the merits of this dispute. No prejudice will result to Ford, who was served in November 2025 and did not object on the grounds that the Answer was not timely filed.

Merits: It is undisputed that Ford did not produce all documents required by Code of Civil Procedure section 871.26(h) by the January 16, 2026 deadline. Ford withheld the warranty policies and procedure manuals and the workshop manual (both parties refer to this as the workshop manual – it is unclear whether this document constitutes the "service manuals" contemplated by the statue at CCP 871.26(h)(13), since the term "workshop manual" does not appear). At minimum, the parties agree that Ford did not timely produce the required warranty policies and procedure manuals required by CCP 871.26(h)(12). Ford conditioned the production of these documents on the entry of a protective order. After a stipulated protective order was entered on May 21, 2025, the documents were produced.

CCP § 871.26 mandates production of the specified documents within 60 days of the answer. Ford's decision to condition production on a protective order is not contemplated by the statute. CCP 871.26(h) provides the defendant or manufacturer *shall* provide the listed documents to all other parties pursuant to given timelines. Except as provided in subsections (b) and (c) "all other discovery shall be stayed until mediation is concluded." CCP 871.26(e). Additionally, Ford has not presented evidence that it timely sought a stipulated protective order which was refused prior to the initial disclosures deadline. The Declaration of Kenneth Hollenbeck provides that Ford sought a stipulation for protective order at some unspecified time. Then, Ford emailed Plaintiff an unmodified model protective order on April 23, 2026, which Plaintiff signed on April 24, 2026. This is well after the January 16, 2026 deadline. No specific information is provided regarding why this was not sought earlier. No meet and confer correspondence is attached. Ford's explanation for the delay does not support a finding of good cause to excuse timely production.

CCP § 871.26 (j)(1), monetary sanctions are mandatory where, as here, a party has failed to comply and cannot demonstrate good cause. The Court will therefore impose sanctions of $2,500.00 on GM, payable within 15 business days of notice of entry of order.

The Court declines to require the sanctioned attorneys report to the state bar, or to impose evidentiary sanctions at this time. CCP § 871.26(j)(4) mandates evidentiary sanctions for a manufacturer's "repeated noncompliance" with subdivisions (b), (c), or (d). The record before the Court reflects a single episode of noncompliance with subdivision (b).

The Motion is **GRANTED** in part, as detailed above. The proposed order will be modified.

JPMORGAN CHASE BANK, N.A. VS. ZAPATA
CASE NUMBER: 25CVG-01603
Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff JPMorgan Chase Bank, N.A., seeks an order deeming admitted the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Rebecca Zapata by mail on December 10, 2025. The Motion has been properly noticed and is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c). However, Plaintiff did not request sanctions and did not provide any basis for determining a reasonable amount. No sanctions will be imposed.

Plaintiff's Motion to Deem Request for Admission, Set One Admitted by Defendant Rebecca Zapata is **GRANTED**. A proposed order has been lodged and will be executed.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. $52,000.00 USD CASH
CASE NUMBER: 26CV-0209676
Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Claimant Jared McGinn, in pro per, on May 15, 2026 for failure to appear on May 11, 2026. No written response to the Order to Show Cause was filed. The Court will impose sanctions in the amount of $250 against Plaintiff, in pro per. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal of the Claim Opposing Forfeiture for failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, August 3, 2026, at 8:30 a.m. in Department 64**. The clerk is directed to issue an Order to Show Cause Re: Dismissal consistent with this ruling.